THOMAS SAKAHUWA
and
ARNOLD DURNMORE MURODZA
and
SHINNING HOUSING PROJECTS
and
CITY OF HARARE (N.O.) 5

HIGH COURT OF ZIMBABWE
MAMBARA J
HARARE; 5 and 8 June 2026

Opposed Application

L Machacha, for the applicant
S Kufandada, for the 2nd respondent
No appearance for the 1st respondent
No appearance for the 3rd respondent

MAMBARA J:

[1] This is an application for a declaratory order brought in terms of s 14 of the High Court Act [*Chapter 7:06*] as read with r 59 of the High Court Rules, 2021. The applicant seeks declaratory relief in respect of Stand No. 1862 Marimba Township, together with consequential relief directed at the first and second respondents.

[2] The factual background is brief. The applicant was allocated Stand No. 1862 Marimba Township by the City of Harare through a letter dated 25 June 2025. He also placed before the court municipal receipts evidencing payments made pursuant to that allocation, as well as the planning documents relating to layout plan TPF/WR/03/21 under which the stand falls. The record further contains the approved subdivision documents relating to the relevant Marimba Park stands. The applicant's complaint is that, despite that municipal allocation, the first respondent took occupation of the stand and excluded him while claiming through a purported allocation made by the second respondent. The second respondent is not the local authority. The third respondent is the City of Harare.

[3] The second respondent's case rests on an altogether different footing. It says there was an earlier regularisation process in its favour and that the first respondent was, as a result, entitled to Stand No. 1862. Yet the documents it produced do not establish that proposition. The memorandum of 26 February 2025 merely approved the proposed subdivision of municipal land under plan TPF/WR/03/21 and expressly recorded that no permit was required because the land remained in the ownership of the Harare Municipality. That planning approval did not itself amount to an allocation of Stand No. 1862 to the second respondent or to the first respondent. The letter relied upon by the second respondent was authored by the second respondent itself. It is not a City of Harare allocation letter.

[4] More tellingly, the second respondent produced no certificate of registration, no council resolution vesting Stand No. 1862 in it, no agreement of sale with the City, no municipal offer letter in favour of the first respondent, and no documentary proof of the alleged regularisation process. If regularisation had truly occurred, one would have expected the primary documents proving it to be before the court. They are not. What is before the court are assertions, but not proof.

[5] The third respondent did not appear at the hearing. It did, however, file a notice of filing dated 19 January 2026 stating that it did not oppose the application, that the applicant is the one recognised as owner of the stand in question, that the second respondent had been allocated stands adjacent to the applicant's stand and not the applicant's stand itself, and that the first and second respondents were invading land that did not belong to them. That document is not in affidavit form. I nevertheless have no reason not to accept it as a formal statement of the third respondent's position. Its contents are, in any event, borne out by the municipal documents already on record.

[6] The first respondent, despite being served by way of substituted service, chose not to participate. The record shows that the applicant had twice approached the magistrates court for interdictory relief, but those proceedings were frustrated by failure to effect personal service on the first respondent. Those applications were then formally withdrawn, and this court later granted substituted service by publication in The Herald. Publication was duly effected, and still the first respondent did not enter appearance. This court cannot countenance the continued frustration of process by tactical evasion of service. The difficulty that impeded adjudication in the magistrates court was cured in these proceedings.

[7] *Mr Kufandada,* for the second respondent, pressed what was in substance the principal legal point: that this matter raises material disputes of fact and is therefore unsuitable for determination on application. The specific alleged disputes were said to concern who was first allocated the stand, whether there had been a regularisation in favour of the second respondent and the first respondent, and whether the applicant's allocation amounted to a double allocation.

[8] I am unable to uphold that submission. The law is settled that application proceedings are inappropriate only where the dispute of fact is real, genuine and bona fide. A litigant cannot create such a dispute by resorting to bare denials, evasive averments, or allegations flatly contradicted by the documents. Courts are entitled to adopt a robust and common-sense approach where the so-called dispute is not genuine. That is the import of the familiar motion-proceedings jurisprudence, including *Masukusa* v *National Foods Ltd & Another* 1983 (1) ZLR 232 (H), *Plascon-Evans Paints Ltd* v *Van Riebeeck Paints (Pty) Ltd* 1984 (3) SA 623 (A) and *Wightman t/a JW Construction* v *Headfour (Pty) Ltd* 2008 (3) SA 371 (SCA).

[9] Applying that approach here, I do not consider that there is any true dispute that calls for oral evidence. The City of Harare is the land authority in relation to the municipal land in question. The applicant has placed before the court a City allocation letter, municipal receipts, and planning documentation tied to the relevant stand. The City has itself said, in its notice of filing, that the applicant is the person recognised in respect of the stand and that the second respondent's allocation lay elsewhere. By contrast, the first respondent has placed nothing at all before the court. The second respondent relies chiefly on its own internally generated letter and list. Those documents do not establish a legal right enforceable against the City or the applicant.

[10] It is important to distinguish between planning approval and land allocation. Approval of a subdivision plan under TPF/WR/03/21 did not amount to alienation of Stand No. 1862 to the second respondent. Nor did it vest the first respondent with any rights in the stand. The second respondent's own letter to the first respondent makes that perfectly plain. It advised that the first respondent's name had been submitted to council and that future interviews and an eventual agreement of sale with council would follow. On the second respondent's own papers, therefore, the first respondent had no completed municipal allocation.

[11] In truth, the second respondent is fighting a lone and futile battle. The odds are against it because its case is unsupported by the foundational documents that should exist if it lawfully acquired or regularised rights over Stand No. 1862. It has not even placed before the court its certificate of registration. There is no council allocation to it of this stand. There is no agreement of sale. There is no municipal offer letter in favour of the first respondent. There is no document proving that the City regularised the second respondent's alleged occupation of Stand No. 1862. I am left with the clear impression that the second respondent is attempting to elevate an expectation of regularisation into a legal right. It cannot do so.

[12] Section 14 of the High Court Act empowers this court, in its discretion, at the instance of an interested person, to enquire into and determine any existing, future or contingent right or obligation. Zimbabwean authority has consistently treated the enquiry as two-stage: first, whether the applicant has the requisite legal interest, and second, whether the matter is a proper one for the exercise of the court's discretion. See *Munn Publishing (Pvt) Ltd* v *Zimbabwe Broadcasting Corporation* 1994 (1) ZLR 337 (S), Johnson v Agricultural Finance Corporation 1995 (1) ZLR 65 (H) and *Matipano* v *Gold Driven Investments (Pvt) Ltd* 2014 (1) ZLR 344 (S). The wider legal setting includes the High Court's civil jurisdiction and the Constitution's protection of property.

[13] The applicant plainly has the necessary interest. He is the holder of the City's allocation in respect of Stand No. 1862. Even if one were to describe his right at this stage as a personal right arising from the municipal allocation process rather than a completed real right through transfer, it is still an existing right and, at the very least, a future or contingent right capable of declaratory protection. That is enough for purposes of s 14.

[14] This is also a proper case for the exercise of the court's discretion. The dispute is live and practical. The applicant says he has been kept out of the stand by the first respondent acting through the second respondent. The City confirms that the applicant is the recognised beneficiary of the stand and that the second respondent's rights, if any, lie elsewhere. A declaration is precisely the form of relief that will finally determine the competing claims instead of leaving the parties trapped in recurring skirmishes over possession.

[15] The second respondent is not a land authority. It cannot purport to allocate municipal land to the first respondent merely because it hoped that such occupation would later be regularised. The power to alienate municipal land lies in the local authority acting within the

statutory framework that governs urban land administration. A purported grant by a party lacking that authority does not create a lawful competing title.

[16] The principle is elementary. A void act does not become valid through the passage of time. *Schierhout* v *Minister of Justice* 1926 AD 99 at 109 remains instructive on that point. If the second respondent had no authority to allocate Stand No. 1862, it could pass no rights to the first respondent. In the same general vein, our law recognises that the person with the better right is ordinarily entitled to reclaim property from an unlawful occupier. See *Alspite Investment (Pvt) Ltd* v *Westerhoff 2009 (2)* ZLR 236 (H). The first respondent's continued occupation, grounded as it is on a purported private allocation unsupported by the City, cannot prevail against the applicant's municipal allocation.

[17] I am therefore satisfied that the applicant has established the better right to Stand No. 1862 Marimba Township. The second respondent's allegations of regularisation do not rise above unsupported assertion. The first respondent, having elected not to participate after substituted service, has placed nothing before the court to disturb the applicant's case. This is one of those matters where the court must adopt the robust and common-sense approach and resolve the case on the papers in favour of the applicant.

[18] As to costs, I see no basis for mulcting the third respondent, which supported the application and merely abided by the court's decision. The justice of the matter is met by ordering the first and second respondents to bear the costs. The first respondent evaded participation even after substituted service. The second respondent persisted with an opposition unsupported by the documents one would expect in a case of real regularisation. Costs should therefore follow the event.

[19] In the result, it is ordered that:

1. The application for a declaratory order be and is hereby granted.
2. The applicant is hereby declared the lawful beneficiary of the City of Harare allocation in respect of Stand No. 1862 Marimba Township, and the person entitled, as against the first and second respondents, to occupy and possess the said stand pending completion of any municipal transfer formalities.
3. The first and second respondents, and all persons claiming occupation through them, are hereby declared to be in unlawful occupation of Stand No. 1862 Marimba Township.

4. The first and second respondents, and all persons claiming through them, shall vacate Stand No. 1862 Marimba Township within 48 hours of service of this order upon them.
5. In the event of non-compliance with paragraph 4 above, the Sheriff of Zimbabwe is hereby authorised and directed to evict the first and second respondents, and all persons claiming through them, from the said stand, with the assistance of the Zimbabwe Republic Police if such assistance proves necessary.
6. The first and second respondents shall pay the costs of suit jointly and severally, the one paying the other to be absolved.

MAMBARA J:……

Zvavanoda Law Chambers, applicant's legal practitioners
Charamba and Partners, second respondent's legal practitioners